

		Because Plaintiff failed to show substantial justification for failing to appear at any of the noticed depositions, sanctions are GRANTED in the amount of \$618.00 against Plaintiff. (Code Civ. Proc., § 2025.450(g)(1).) Sanctions are to be paid to Defendant's counsel within 30 days of service of notice. <i>Defendants to give notice</i> <u>Motion to be Relieved</u> Hesam Yazdanpanah of the Law Offices of Hess Panah Associates, ("Moving Attorney") moves to be relieved as counsel of record for Plaintiff Cory Panico. The motion is unopposed. Moving Attorney has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. The motion satisfies the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362. Plaintiff's attorney to give notice and include the continued trial date of 9/14/2026 at 9 a.m. in Department W15. The order is deemed effective upon service by the moving attorney on the client and a proof of service filed with this court. The motion is GRANTED. <i>Moving Attorney to give notice.</i>
108	Westcoast Therapy, Inc. vs. Xavier, 22-01256587	<u>Motion to Compel Written Discovery and Deem Matters Admitted (ROAs 178 and 192)</u> Plaintiff Westcoast Therapy, Inc. ("Plaintiff") moves for an order: (1) compelling Defendant Angelica Xavier ("Defendant") to serve responses to Plaintiff's first set of Requests for Production of Documents, Special Interrogatories, and Form Interrogatories; (2) deeming the truth of all matters specified in Plaintiff's first set of Requests for Admission as admitted; and (3) imposing monetary sanctions. The discovery at issue was served on January 19, 2026 electronically and by mail. (Declarations of Shanon J. Slack ¶¶ 2-3.) Since Defendant is in pro per and does not

		appear to have consented to electronic service, responses were due on February 23, 2026. As of February 23, 2026, no responses had been received. (Slack Decls. ¶ 5.) Based on the above, the unopposed Motions are GRANTED. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b), 2033.280(b).) Defendant is ORDERED to serve verified responses to the first set of Requests for Production of Documents, Special Interrogatories, and Form Interrogatories within 20 days following July 2, 2026. The genuineness of documents and truth of the matters set forth in the Requests for Admissions, Set One are deemed admitted. Plaintiff's request for monetary sanctions is GRANTED in the reduced amount of \$620.00. (Code Civ. Proc., §§ 2030.290(c), 2031.300(c), 2033.280(c).) Sanctions are to be paid to Plaintiff's counsel within 20 days following July 2, 2026. <u>Motion to Compel Deposition (ROA 271)</u> Plaintiff Westcoast Therapy, Inc. ("Plaintiff") moves to compel Defendant Angelica Xavier ("Defendant") to appear for deposition. Plaintiff's notice of deposition of Defendant was served on February 18, 2026. (Slack Decl., ¶ 7.) Defendant does not deny receiving the deposition notice and does not deny that she did not serve any objections to the notice. (See, generally, Oppn.) Defendant contends that she is not refusing to be deposed, but is requesting that the deposition occur after the July 2, 2026 hearing on her motion to compel arbitration. (Xavier Decl. ¶ 6.) Defendant also contends she is recovering from a traumatic brain injury, which is causing her cognitive limitations. (Xavier Decl. ¶ 4.) Plaintiff contends that Defendant did not appear at her deposition, and, as a result, Plaintiff incurred \$1,428.50 in Court Reporter fees. (Slack Decl., ¶¶ 9, 11.) Plaintiff requests sanctions in the amount of \$5,636.00 plus \$60 in filing fees for bringing this motion.
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		The motion is GRANTED. Defendant is ordered to appear for her deposition within 20 days following the July 2, 2026 hearing on her motion to compel arbitration. Because Defendant failed to show substantial justification for failing to object or appear at her deposition, therefore causing Plaintiff to incur the costs of a Court Reporter, sanctions are GRANTED in the reduce amount of \$1,428.50 against Defendant. (Code Civ. Proc., § 2025.450(g)(1).) Sanctions are to be paid to Plaintiff's counsel within 20 days following July 2, 2026. Depending on the outcome of the arbitration motions, the Court may vacate the above rulings. <i>Plaintiff to give notice of all rulings.</i>
109	Nguyen vs. Roth Staffing Companies, L.P., 20-01143300	Defendants FISTER TAX SERVICE, INC. and GERALD L. FISTER ("Fister Defendants") will move the Court for Summary Judgment or, in the Alternative, Summary Adjudication (11 issues) in favor of Fister Defendants and against Plaintiff Alana Nguyen. On 5/26/2020 Plaintiff Nguyen filed a Complaint against Defendants for: 1. Violation of California Fair Employment and Housing Act – Gender Discrimination, Sexual Harassment and/or Retaliation, and Failure to Take Steps Necessary to Prevent Harassment, and (Cal. Gov. Code § 12940); 2. Wrongful Constructive Termination in Violation of Public Policy; 3. Wrongful Constructive Termination/Retaliation in Violation of California Labor Code Section 1102.5; 4. Negligent Hiring, Supervision, Retention; 5. Intentional Infliction of Emotional Distress; 6. Sexual Battery; 7. Violation of the Ralph Act (Violence or Intimidation by Threat of Violence) (Cal. Civ. Code §§ 51.7, 52, and 52.1); 8. Failure to Pay All Wages Due Upon Separation (Cal. Labor Code § 201, 202, 203). 9. Waiting Time Penalties In her Complaint, Plaintiff alleges that she was hired by Defendants to work as an administrative assistant at Fister Tax Services on or around December 2018. (Complaint